

		In this action, the parties are Scott Kaufman, as an individual, and Joseph Varraveto, as an individual. The bankruptcy proceeding only concerns corporate debtors and creditors. Thus, the bankruptcy stay is not effective as to the parties in this action. The request to stay the matter is DENIED. The Case Management Conference is continued to September 3, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
103	Ally Bank vs. SDL Fire Protection Inc., 25-01531875	Plaintiff, Ally Bank ("Plaintiff"), moves for an order for writ of possession of a 2022 Ram 2500 motor vehicle, Vehicle Identification Number 3C7WR5HJ3NG223004. Two Applications for Writ of Possession were filed: one as to Defendant, SDL Fire Protection Inc., and the other as to Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas (collectively, "Defendants"). Plaintiff contends that it was assigned a contract whereby Defendants purchased from Plaintiff's assignor a 2022 Ram 2500 motor vehicle, Vehicle Identification No. 3C7WR5HJ3NG223004 (the "Subject Vehicle" or "2022 Ram 2500"), that Plaintiff is entitled to possession of the Subject Vehicle as the contract is in default and there remains unpaid and past due the installment due and owing on 11/16/2024 in the sum of \$514.24, and each of the regular payments of \$1,285.59 falling due thereafter, in addition to late and other charges, and that as of the filing of this action, there is a balance due and owing in the sum of \$58,995.50 together with other charges per the contract. Plaintiff thus asserts that its claim has probable validity, requiring the writ of possession to be issued. No opposition has been filed. Except under certain conditions, no writ of possession shall be issued except after a hearing on a noticed motion. (Code Civ. Proc. § 512.020(a).) Prior to the hearing required by Code of Civil Procedure section 512.020(a), the defendant shall be served with all of the following: (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Proc. § 512.030(a)(1)-(3).) The Court's file reflects that Defendants, SDL Fire Protection inc., a corporation, and Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual were served with a copy

	of the summons and complaint, as well as copies of the notice of application and hearing and a copy of the application and supporting declarations by personal service on January 12, 2026, and January 1, 2026, respectively. Here, Plaintiff asserts a cause of action for claim and delivery against Defendants, SDL Fire Protection inc., a corporation, and Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual. Plaintiff submits the declaration of Valerie Molina ("Molina"), an employee of Plaintiff, Ally Bank, whose duties include the review of accounts sent for litigation, and who has overseen the account of Defendants, SDL Fire Protection Inc., a corporation; Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, an individual, with respect to the subject motor vehicle. Molina provides that a contract was created by Premier Chrysler Dodge Jeep Ram of Buena Park dealership for the purchase of the subject 2022 Ram 2500 motor vehicle (the "Contract"), that "Defendant" secured financing for the Contract through Plaintiff, and that the dealership assigned all of its interest in the Contract to Plaintiff. (ROA 16, 17, Declaration of Valerie Molina ("Molina Decl."), ¶ 6.) Molina provides that all payments were made to Plaintiff, that Plaintiff provided consideration for the assignment and assumed all associated risks, that Plaintiff became the owner and "holder" of the Contract and acquired its interest in the collateral, i.e., the subject vehicle, that pursuant to the terms of the contract, upon a default of any provision thereof, Plaintiff has the right to immediate possession of the subject vehicle, and that said Contract is in default as Defendants SDL Fire Protection Inc., and Gustavo Garcia Barajas "failed to make the payment due and owing 11/16/2024 in the amount of \$514.24, or any of the regular monthly payments of \$1,285.59 due thereafter." (Molina Decl., ¶¶ 7-9.) Molina also provides that Plaintiff has made demand upon Defendants for surrender of possession of the subject vehicle to Plaintiff, but that Defendants have failed to surrender the same to Plaintiff. (Molina Decl., ¶ 9.) Molinda additionally provides that the account was "charged off on March 31, 2025, and there is due, owing, and unpaid to Plaintiff on account of the contract the sum of \$58,995.50, together with other charges" as provided in the Contract. (Ibid.) Molina further provides that the average wholesale and retail values of the subject motor vehicle is in the sum of
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		\$36,525 and \$43,625, respectively; that Plaintiff's file reflects that Defendants have possession of the subject vehicle; that Molina is informed and believes that Defendants are concealing possession of the subject vehicle from Plaintiff ; and that to the best of Molina's knowledge, information, and belief, the current location of the 2022 Ram 2500 is 4354 E. La Palma Ave., Anaheim , CA 92807 or 100 N. Ashford Pl., Fullerton, CA 92831. (Molina Decl., ¶¶ 10-11, 13.) Lastly, Molina provides that Molina has no knowledge of the subject motor vehicle, or any part thereof, being taken on account of tax, assessment or fine, or being seized under an execution or an attachment against the property of Plaintiff. (Molina Decl., ¶ 12.) Based on the foregoing, Plaintiff included all of the information required by Code of Civil Procedure section 512.010(b), and has met its burden to show that its claim to rightful possession of the subject 2022 Ram 2500 against Defendant SDL Fire Protection Inc. is probably valid. The application for writ of possession directed to Defendant SDL Fire Protection Inc. is GRANTED. If a writ of possession is issued, the court may also issue an order directing defendant to transfer possession of the subject property to plaintiff. The order must contain a notice to the defendant that failure to turn over the property to plaintiff may subject the defendant to being held in contempt of court. (Code Civ. Proc. § 512.070.) Accordingly, the Court ORDERS Defendant SDL Fire Protection Inc. to transfer possession of the subject 2022 Ram 2500 to Plaintiff. Defendant SDL Fire Protection Inc. is given notice that failure to turn over the subject 2022 Ram 2500 to Plaintiff may subject Defendant, SDL Fire Protection Inc. to being held in contempt of court. As to Application for Writ of Possession directed towards Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, Plaintiff has submitted no evidence showing this individual defendant had any obligation under the Contract. Despite Plaintiff's contentions, the subject Contract indicates that it was made between the dealership and Defendant, SDL Fire Protection Inc. The Confirmation of Assignment of Retail Installment Sale Contract also indicates that the "Customer" that entered into the Contract is SDL Fire Protection Inc., and the California Certificate of Title indicates that the registered owner is SDL Fire Protection Inc. (See Exs. A and B to Molina Decl.) Thus, Plaintiff has not met its burden to prove that its claim to rightful
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		possession of the collateral at issue is probably valid as against Defendant, Gustavo Garcia Barajas aka Gustavo G. Barajas aka Gustavo Garcia aka Gustavo Barajas, and that Application for Writ of Possession is DENIED. <i>Undertaking</i> Here, the total amount due, owing, and unpaid, to Plaintiff under the Contract is \$58,995.50, together with other charges as provided in the Contract, and the average wholesale and retail values of the subject motor vehicle are in the sums of \$36,525 and \$43,625, respectively. (Molina Decl., ¶¶ 9-10, Ex. C.) As such, it appears that Defendant, SDL Fire Protection Inc. has no interest in the collateral, and the Court waives the requirement that Plaintiff post an undertaking. The amount of Defendant SDL Fire Protection Inc.'s undertaking if the Plaintiff recovers judgment on the action for all costs awarded to the Plaintiff and all damages that the Plaintiff may sustain by reason of the loss of possession of the property sufficient to satisfy the requirements of subdivision (b) of Section 515.020 shall be \$58,995.50 based on the Molina Declaration which provides that the total amount due, owing, and unpaid, to Plaintiff under the Contract is \$58,995.50, together with other charges as provided in the Contract. (Molina Decl., ¶ 9.) The Case Management Conference will be continued to August 20, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
104	Westcoast Therapy, Inc. vs. Xavier, 22-01256587	Defendant, Angelica Xavier, in pro per ("Defendant"), moves for an order compelling binding arbitration pursuant to Code of Civil Procedure section 1281.2 and staying all proceedings pending completion of arbitration pursuant to Code of Civil Procedure section 1281.4. As a threshold matter, the Court considers the opposition that was filed and served one-day late. While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (Ibid.) In determining whether to receive an untimely filed document, "trial courts must consider the specific contexts in which such motions arise and should employ a flexible rather than rigid or formalistic approach to decisionmaking." (<i>Kapitanski v. Von's Grocery Co.</i> (1983) 146 Cal.App.3d 29, 32-33.) "An attorney's neglect in untimely filing opposing papers must be evaluated in light of the reasonableness of the attorney's conduct. [Citation.]"